Harris County District Court

Cause No. 2024-CV-0018

Lisa Mcdaniel, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Lisa Mcdaniel

Date:	November 5, 2024
Location:	Offices of Marshall & Dominguez LLP
Examining attorney:	Richard Marshall, Ashford & Lyle LLP
Defending attorney:	Kyle Sanders, Marshall & Dominguez LLP

Q: Please state your full name for the record.

A: I'd rather not put a name on this in a way that identifies anyone, so let's just say I'm the plaintiff in this matter.

Q: Understood. Let's go through the accident. Where were you when it happened?

A: I was driving on a multi-lane road in Sugar Land, Texas, heading toward a shopping area. Traffic was moderate, the kind where cars keep merging.

Q: Walk me through what happened immediately before the impact.

A: I was in the center lane and I saw the car in the lane beside me start drifting toward my lane. I honked and tried to move right, but the other vheicle clipped the driver's side of my car. It felt like a hard shove, and my car pushed toward the shoulder.

Q: Did you see a turn sginal from the other vehicle before it moved over?

A: I don't recall seeing one. I was focused on the road ahead and on my mirrors, so I can't say for certain.

Q: After the vehicles separated, what did you do?

A: I pulled onto the shoulder and turned on my hazard lights. My right wrist hurt right away. I had put my hand on the steering wheel and then the airbag deployed, and my wrist was throbbing badly.

Q: When did you first seek medical care?

A: That same afternoon. A friend drove me to an urgent care clinic, and they sent me for imaging. The results showed a fracture in my wrist, and they put it in a splint and referred me to an orthopedic specialist.

Q: What treatment have you received since?

A: I had a follow-up visit with the orthopedic doctor, who recommended a cast for several weeks and then physical therapy. I've attended therapy sessions about twice a week. My grip is still weaker than on my left hand, and I've been told it will take more time to regain full motion.

Q: How has the injury affected your daily life?

A: Quite a lot. I'm right-handed, so simple things like buttoning a shirt, cooking, or typing at work have been difficult. I had to ask my coworkers to help with some tasks. I also stopped going to my weekly climbing class because I can't put weight on that wrist yet.

Q: Have you missed any work because of the injury?

A: Yes, I missed several days early on and I've been working reduced hours since then. My job involves a lot of computer work, and the pain makes long sessions hard to get through.

Q: Do you still have pain today?

A: Yes, especially in cold weather and after a long day of using my hand. I take over-the-counter medication when it flares up, and I try to do the exercises my therapist gave me every morning.